

WILMA · MULTI-JURISDICTION REFERENCE

Kansas — Expungement Reference Pack

Kansas expunges convictions, diversions, and related arrest records through a single court petition under K.S.A. 21-6614. Eligibility turns on a tiered waiting period keyed to the offense, plus a fixed list of permanently ineligible crimes.

Statute K.S.A. 21-6614	Form set Kansas Judicial Council	Petition rev. 08/2022	Docket fee \$176
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How Kansas expungement works

One petition under K.S.A. 21-6614 covers both convictions and diversions, with the related arrest records. The petition is filed in the convicting/diverting court (the county of arrest), with a docket fee, and the court sets a hearing and notifies the prosecutor and arresting agency. At the hearing the court grants or denies. Two threshold tests must both be met: the offense must be eligible (not on the permanent-ineligible list), and the applicable waiting period must have elapsed since the person finished the sentence, completed diversion, or was discharged from supervision — not from the date of arrest or conviction.

Waiting periods by offense (K.S.A. 21-6614)

The clock runs from completion of sentence, diversion, probation, parole, post-release supervision, conditional release, or a suspended sentence — whichever applies.

CONVICTION / OFFENSE	WAIT	K.S.A.
Misdemeanor; traffic / cigarette-tobacco infraction	3 years	21-6614(a)
Class D or E felony	3 years	21-6614(a)
Nondrug felony, severity levels 6–10 (on/after 7-1-1993)	3 years	21-6614(a)
Drug felony, severity level 4 (7-1-1993 to 7-1-2012)	3 years	21-6614(a)
Drug felony, severity level 5 (on/after 7-1-2012)	3 years	21-6614(a)
Prostitution	1 year	21-6614(b)
Class A, B, or C felony	5 years	21-6614(c)
Nondrug felony, severity levels 1–5 (on/after 7-1-1993)	5 years	21-6614(c)
Drug felony, severity levels 1–3 (7-1-93 to 7-1-12) / 1–4 (on/after 7-1-12)	5 years	21-6614(c)
Off-grid felony; perjury; vehicular homicide; felony using a motor vehicle	5 years	21-6614(c)
Driving while suspended; no insurance; leaving accident scene; false-name title	5 years	21-6614(c)
DUI — 1st offense (on/after 7-1-2006)	5 years	21-6614(d)
DUI — 2nd+ (7-1-2014 to 6-30-2015 window)	7 years	21-6614(d)
DUI — 2nd or subsequent (general)	10 years	21-6614(d)

Time-of-offense rule (State v. Anderson): the law in effect when the offense was committed governs eligibility, unless current law is more beneficial to the defendant. This mainly affects older DUIs.

Specialty court fast track

A person who completes a specialty court program may petition for **immediate** expungement of any offense that would otherwise be eligible after three years. It does not apply to ineligible offenses or to those carrying a 1-, 5-, 7-, or 10-year wait. On the petition this is Option B.

Two more conditions for every petition

- No felony conviction in the past two years, and no felony proceeding pending or being instituted.
- For a prostitution conviction or diversion, the petitioner may indicate they were acting under coercion (threats of harm or restraint, a coercive scheme, or abuse of legal process).

Permanently ineligible (K.S.A. 21-6614(e))

These convictions can never be expunged (nor attempts to commit them):

- Rape; criminal sodomy and aggravated criminal sodomy; indecent liberties and aggravated indecent liberties with a child.
- Indecent solicitation and aggravated indecent solicitation of a child; sexual exploitation of a child; internet trading in child pornography (and aggravated).
- Aggravated incest; abuse of a child; endangering / aggravated endangering a child.
- Capital murder; murder 1st and 2nd degree; voluntary and involuntary manslaughter; involuntary manslaughter while DUI.
- Sexual battery where the victim is under 18; aggravated sexual battery.
- Commercial DUI, including any diversion for such a violation.
- Any comparable offense if the conviction was in effect at any time before July 1, 2011.

Registration bar: a person required to register as a sex or violent offender cannot expunge any conviction while the registration requirement is in effect. A drug-offender registrant may be able to petition for relief from registration and expungement of the drug offense together if requirements are met.

The form set and filing order

The Judicial Council packet is filed and presented in this sequence:

1. Criminal Cover Sheet	Confidential clerk intake (identity, not public); filed with the petition.
2. Petition for Expungement of Conviction or Diversion	The core sworn application (rev. 08/2022); states identity, the offense, dates, and the eligibility option (A standard wait / B specialty court).
3. Notice of Hearing	After getting a hearing date from the clerk/judge's assistant; the clerk serves the prosecutor and arresting agency.
4. Order of Expungement Cover Sheet	Sent to the Kansas Bureau of Investigation to identify the exact record to expunge.
5. Order of Expungement / Order Denying Expungement	Both prepared in advance (paragraphs 1–4) and brought to the hearing; the judge signs the applicable one.

Note: the Order of Expungement (granting) itself is referenced in the instructions but was not among the uploaded files; the companion form replica includes the Petition, Notice of Hearing, Order Denying, and both cover sheets, and scaffolds the granting order from the denial order's structure.

Prepared as a plain-language reference for the Wilma knowledge base. Summarizes K.S.A. 21-6614 and the Kansas Judicial Council forms as of June 2026 and is not legal advice. The statute is amended regularly and the time-of-offense rule can change the applicable wait — verify the current statute and form revisions, and consult counsel, before filing.

signature/date review zone